

TENTATIVE RULINGS for LAW and MOTION

July 24, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Two	(530) 406-6787
Telephone number for the clerk in Department Eight	(530) 406-6927
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Dillman Horse Ranch LLC v. Saldana**
Case No. CV2026-1853

Hearing Date: **July 24, 2026** **Department Two** **1:30 p.m.**

Defendant Rafael Saldana's motion to set aside default and default judgment is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (b).) Defendant failed to file and serve this motion on plaintiff Dillman Horse Ranch LLC at least 16 court days, plus time for service, before the hearing. (Code Civ. Proc., § 1005, subd. (b).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Meritage Homes of California, Inc. v. HBT of Winters Highlands,
LLC

Case No. CV2023-1612

Hearing Date: July 24, 2026 Department Fourteen 9:00 a.m.

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **In re Sanbeck**
 Case No. PR2026-0094

Hearing Date: **July 24, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Yasmine Howerton’s motion for limited protective relief notwithstanding appeal and for appointment of special administrator is **DENIED**. (Prob. Code, §§ 1310, subd. (b), 8540, 8544.) First, petitioner has not shown that this Court can issue a protective order, pursuant to Probate Code section 1310(b), preventing certain actions in a related civil case. (Ps & As, pp. 6-7.) Second, the Court does not consider petitioner’s request for letters of special administration within this motion because it was not submitted on mandatory Judicial Council form DE-111. (Cal. Rules of Court, rule 1.31; Motion, pp. 7-8.) The Court will review petitioner’s amended petition for letters of administration, filed on July 15, 2026, separately.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2022-1963

Hearing Date: **July 24, 2026** **Department Eight** **1:30 p.m.**

Plaintiff Xinyao Zhou’s motion for reconsideration and motion for leave to file fourth amended complaint are **STAYED**, pending resolution of plaintiff’s appeal, filed on June 25, 2026, Third District Court of Appeal Case No. C106663. (Code Civ. Proc., §§ 1008, subd. (a), 473, 576; Cal. Rules of Court, rule 3.1324.) As plaintiff’s motions involve matters embraced by the pending appeal, the Court does not have jurisdiction to rule on the motions. (Code Civ. Proc., § 916; *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 196-200; see also *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141 [“A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.”], citation and brackets omitted.)

The Court sets a review hearing re stay for **October 16, 2026**, at 9:00 a.m. in Department Eight.

The notices of motion do not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
Case No. CV2023-0312

Hearing Date: **July 24, 2026** **Department Eight** **1:30 p.m.**

Plaintiff Xinyao Zhou’s motion for leave to file third amended complaint is **GRANTED**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) First, plaintiff has satisfied the applicable procedural requirements. (Cal. Rules of Court, rule 3.1324; Zhou dec., ¶¶ 3-19, Exhibits A & B.) Second, defendant Hotel Winters, LLC has not established that it will be prejudiced by the proposed amendment, or the requested amendment is not warranted under Code of Civil Procedure sections 473(a)(1) and/or 576. (See *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 486.) Finally, if defendant believes that plaintiff’s causes of action are not meritorious, then it may test the amended complaint’s “legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Plaintiff is directed to file the proposed third amended complaint, attached to her declaration, by **July 31, 2026**. (Zhou decl., ¶ 4, Exhibit B.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.